SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 04/20/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C24-01078
CASE NAME: JOHN CARDENAS, SR. VS. AMERICA WEST MEDICAL TRANSPORT, INC
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: CARDENAS, JOHN, SR.
****TENTATIVE RULING:****
****TENTATIVE RULING:****

On the Court’s own motion, the hearing on this matter is continued until April 27, 2026.

2. 9:00 AM CASE NUMBER: C24-02532
CASE NAME: ANGEL'S EXCAVATION & CONSTRUCTION, INC VS. JESICA RODRIGUEZ
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT AGAINST NON-PARTICIPATING PARTY WHO COULD NOT OTHERWISE BE LIABLE AS A MATTER OF LAW**
FILED BY: RODRIGUEZ, JESICA MARIELA
****TENTATIVE RULING:****

Before the Court is Defendant Jesica Rodriguez ("Defendant")'s "Motion in Equity to Set Aside Default Judgment Against Non-Participating Party" ("Motion"). The Motion is opposed by Plaintiff Angel's Excavation & Construction, Inc. dba Angel's Excavation & Earthwork ("Plaintiff").

Defendant moves pursuant to Code of Civil Procedure section 473(b) and (d) on several grounds.

For the following reasons, the motion is **DENIED**.

Evidentiary Objections

First, Plaintiff objects to the evidence proffered by Defendant on reply.

"The general rule of motion practice. . .is that new evidence is not permitted with reply papers. . .'[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . .' and if permitted, the other party should be given the opportunity to respond." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) Reply evidence should not address substantive issues in the first instance but only fill gaps in the evidence created by opposition. (*Id*. at 1538.)

In its discretion, the Court declines to consider Defendant's new reply evidence.

Procedural History

Plaintiff filed a verified complaint for (1) breach of written contract, (2) breach of a loan agreement, (3) breach of the covenant of good faith & fair dealing, and (4) declaratory relief on September 20, 2024. The Proof of Service of Summons on file indicates that Defendant was served by substituted service on October 14, 2024.

Defendant did not file a response to the Complaint. On December 17, 2024, when no responsive pleading had been filed and served, Plaintiff filed a request for default. A default was entered against the Defendant the same day.

Plaintiff filed a request for Court Judgment on March 10, 2025. Ultimately, an amended judgment was entered on August 29, 2025 in the amount of $974,003.21.

Defendant filed the instant motion to set aside default judgment on December 8, 2025.

Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure ("CCP") §473(b).

Code of Civil Procedure 473(b) provides, in relevant part:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Defendant also moves pursuant to subsection (d) which reads: "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

<u>Analysis</u>

As a threshold issue, section 473(d) addresses the situation where the judgment is "void," such as when the defendant has not been properly served. While Defendant's motion indicates subsection (d) as an alternative basis for relief, her legal basis for this ground is unclear. She does not argue improper service, and it is uncertain on what other basis she contends the judgment is void. Defendant has not demonstrated grounds for relief under subsection (d).

With respect to subsection (b), when a party seeks relief from a default, "[a]pplication for this relief … shall be made within a reasonable time, in no case exceeding six months, after the … order … was taken." (CCP §473(b).) Default was entered on December 17, 2024. The Amended Judgment was entered on August 29, 2025.

In perhaps a tacit admission that the six-month time limit has run with respect to her default, Defendant's motion is directed solely at the default judgment. However, as explained further below, setting aside the default judgment without a corresponding set aside of the default would be an idle act.

The court in *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267 provides a succinct overview of the proper analysis:

> [Defendant's] motion was filed less than six months after entry of the default judgment, but more than six months after entry of its default. The trial court therefore could not set aside the default under Code of Civil Procedure section 473. And because it could not set aside the default, it also could not set aside the default judgment under Code of Civil Procedure section 473, because that would be 'an idle act.' (*Howard Greer Custom Originals v. Capritti* (1950) 35 Cal.2d 886, 888[].) 'If the judgment were vacated, it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not

> be heard in opposition thereto. …'" (*Id.* at 273.)

The California Supreme Court in *Howard*, quoted by *Pulte Homes,* includes an even more in-depth explanation of this legal tenet:

> The setting aside and vacating the judgment alone, which was all the relief sought in said motion, would have been an idle act, because the default . . . would have stood undisturbed. The default cut off defendants from making any further opposition or objection to the relief which plaintiff's complaint shows he is entitled to demand. A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial, or demand notice of subsequent proceedings. . . . [citing cases] . . . If the judgment were vacated it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. …" (*Howard*, supra, 35 Cal.2d at 888-89 citations omitted.)

Defendant has not sought to have her default set aside. While the current request to set aside the Amended Judgment may be timely, the Court is without power to set it aside as doing so would be an 'idle act.' (*Pulte Homes Corp.*, supra, 2 Cal.App.5th at 273.) Even if the Court set aside the Amended Judgment, it would be required to thereafter enter a new final judgment – without input from Defendant as she is and would remain in default.

Accordingly, Defendant's Motion is **DENIED**.

3. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, HELIO
<u>*TENTATIVE RULING:*</u>

Joseph A. Lepera and the other named attorneys of Lepera + Associates, PC ("Counsel") filed two separate motions to be relieved as counsel on December 5, 2025 (the "Motions to be Relieved as Counsel"). The matters were both set for hearing on April 20, 2026.

<u>Background</u>

Counsel seeks to be relieved as attorneys for defendants Helio Dimas and Susana Dimas ("Defendant").

The supporting declarations filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to a breach of the Attorney-Client Agreement and by conduct which has "rendered it unreasonably difficult to carry out their representation effectively." See Declarations filed December 5, 2025, ¶2. Defendants have been given notice of the Motions to be Relieved as Counsel. *Id*. at ¶3.

Thereafter, Substitutions of Attorney were filed as to both defendants on January 5, 2026 (the

"Substitutions"). Both Helio Dimas and Susana Dimas are now representing themselves in pro per.

Analysis

The Motions to be Relieved as Counsel are unopposed.

Disposition

The Court finds and rules as follows:

1. The Motions to be Relieved as Counsel are DROPPED from calendar as moot in light of the Substitutions.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, SUSANA
****TENTATIVE RULING:****

See LINE 3 above.

5. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
***HEARING ON MOTION IN RE: STRIKE THE WHOLE OF SIMONA YANA S. ZAKHEIM AND HYDEN ZAKHEIM, LLP'S DEFECTIVE DEMURRER TO FIRST AMENDED COMPLAINT**
FILED BY: RODRIGUEZ, ROBERT D.
****TENTATIVE RULING:****

Withdrawn by the moving party's Notice of Withdrawal filed April 13, 2026. Accordingly, the motion is DROPPPED from calendar.

6. 9:00 AM CASE NUMBER: C25-01728
CASE NAME: JOHN DOE VS. JOSEPH MARTIN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
****TENTATIVE RULING:****

Defendant Mount Diablo Unified School District ("Defendant") brings this demurrer to the complaint ("Complaint") of plaintiff John JB Doe ("Plaintiff"). Defendant challenges Plaintiff's second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for negligent failure to warn, train, or educate students.

For the reasons discussed below, Defendant's demurrer is **SUSTAINED** as to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for negligent failure to warn, train, or educate students, with leave to amend.

<u>Meet and Confer</u>

The meet and confer requirement has been satisfied. (Madison M. Simmons Decl., ¶¶ 2-3, Exhs. A & B; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

<u>Legal Standard for Demurrer</u>

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.,* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

<u>Background: Facts Alleged in Complaint</u>

Plaintiff filed the instant Complaint in this matter on June 16, 2025. The Complaint alleges four causes of action arising from the alleged sexual assault and harassment of Plaintiff, when he was a minor, by defendant Joseph Andrew Martin ("Martin"), who was Plaintiff's fourth grade teacher at Woodside Elementary School, within the area of Mount Diablo Unified School District. (Complaint, ¶¶ 1-34.) Plaintiff asserts claims against Defendant and Martin for: (1) negligent hiring, retention & supervision; (2) sexual harassment pursuant to Civil Code sections 51.9 and 52; (3) negligent failure to warn, train, or educate students; and (4) negligent supervision of a minor. (*Id*., at ¶¶ 35-66.)

<u>Discussion</u>

<u>Sexual Harassment (Civil Code §§ 51.9, 52.)</u>

Defendant argues that this cause of action is improper because the school district employer cannot be vicariously liable for the alleged sexual harassment and that the Unruh Act does not apply to the kind of entity it is. (Demurrer MPA, pp. 2-4.) Plaintiff does not oppose this portion of Defendant's demurrer and states that upon being granted leave to amend Plaintiff will withdraw this cause of action against Defendant. (Opposition, p. 4:17-23.)

In light of this, Defendant's demurrer to Plaintiff's second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, is **SUSTAINED** with leave to amend.

Negligent Training or Education of Students

In this claim, Plaintiff alleges that Defendant had a duty to warn, train, and educate students in its custody, care, and control, of known or knowable dangers posed by faculty and staff. (Complaint, ¶ 53.) Plaintiff alleges that Defendant breached that duty, which resulted in Plaintiff being groomed, manipulated, and sexually assaulted and caused him to suffer damages. (*Id*., at ¶¶ 54-58.)

Defendant argues that Plaintiff's third cause of action for negligent training or education of students fails due to there being no private right of action for a claimed negligent failure to educate or train. Defendant cites *Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, and *Chevlin v. L.A. Cmty. College Dist*. (1989) 212 Cal.App.3d 382, as authority for its position. (Demurrer MPA, p. 4:8-20.) Defendant also argues that a public entity can only be held liable when it is under a mandatory duty imposed by legislative enactment, and that even then, discretionary immunity may apply as to decisions relating to the specific curriculum. (*Id*., at pp. 4-5; Gov. Code, §§ 815.6, 820.2.)

Plaintiff argues that "just as the school district may be held vicariously liable for the negligence of administrators or supervisors in hiring, supervising, and retaining a school employee who sexually harasses and abuses a student, so too it may be held vicariously liable for the negligence of administrators' or supervisors' failure to warn, train, or educate the students in its custody, care, and control of the risks of harm posed by faculty and staff." (Opposition, p. 5.) Plaintiff cites *C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861, 878, as authority for this. (*Ibid*.)

Plaintiff further argues that Defendant has a special relationship with students that gives rise to Defendant's duty to warn and protect students from potential harm, which arises from *Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607. (Opposition, pp. 6-8.) Plaintiff argues that mandatory duties to protect students from sexual abuse exist. (*Id*., at pp. 8-9.) Plaintiff cites to Education Code section 44807 and the California Constitution, Article 1, section 28, subd. (a)(7) as being bases for the mandatory duty. (*Id*., at p. 8.) Plaintiff asserts "While some curriculum decisions may involve discretion, the duty to protect students from physical harm and sexual abuse does not. A school district's obligation to take reasonable steps to prevent harm to students in its custody, care, and control is a mandatory operational duty, not a discretionary policy decision." (*Ibid*.) Finally, Plaintiff argues that discretionary immunity does not shield Defendant from liability "for operational failures to protect students from known dangers." (*Id*., at p. 9.)

On reply, Defendant argues that despite Plaintiff's attempt to distinguish the *Peter W*. and *Chevlin* cases, they still apply due to the basis of their holdings—a claimed failure to educate a student is not permissible. (Reply, p. 2.) Defendant points out that Plaintiff's failure to warn argument is based on an allegation that Defendant knew or should have known of the risk posed by defendant Martin based on a 2006 internal investigation that flagged him as a potential risk. (Reply, pp. 2-3.)

The California Supreme Court has summarized how public entity liability may or may not be established:

> Under the Government Claims Act (Gov. Code, § 810 et seq.), a public entity is not liable "[e]xcept as otherwise provided by statute." (Gov. Code, § 815; see *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932 [80 Cal. Rptr. 2d 811, 968 P.2d 522].) If the Legislature has not created a statutory basis for it, there is no government tort liability. (*Hoff*, at p. 932.)

(*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal.4th 1002, 1009.)

The Court finds that Plaintiff has not stated a claim with respect to holding Defendant liable for failure to warn, train, or educate the students at Woodside Elementary school about its sexual harassment policy and inappropriate boundary crossing with students. Plaintiff's argument in support of the failure to warn is based on a 2006 internal investigation that took place 6-7 years after the alleged sexual misconduct. (Opposition, pp. 7:22-8:4.) Plaintiff cites Education Code section 51934, subdivision (a)(10), to argue that "the California Education Code codified the long-standing expectation that schools teach students in grades seven (7) through twelve (12) comprehensive sexual health with a curriculum including 'information about sexual harassment, sexual assault, sexual abuse, and human trafficking...' " (Opposition, p. 6.:24-27.) However, Plaintiff was in the fourth grade, so the requirement to educate seventh to twelfth graders on sexual topics explicitly cuts against Plaintiff's assertion that Defendant breached a duty "to inform and educate [Plaintiff] on their sexual harassment policies and the methods to identify, report and respond to in appropriate sexual harassment and abuse by teachers. . ." (Complaint, ¶¶ 4, 54.)

Further, Education Code section 44807 provides that:

> Every teacher in the public schools shall hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess. A teacher, vice principal, principal, or any other certificated employee of a school district, shall not be subject to criminal prosecution or criminal penalties for the exercise, during the performance of his duties, of the same degree of physical control over a pupil that a parent would be legally privileged to exercise but which in no event shall exceed the amount of physical control reasonably necessary to maintain order, protect property, or protect the health and safety of pupils, or to maintain proper and appropriate conditions conducive to learning. The provisions of this section are in addition to and do not supersede the provisions of Section 49000.

This does not support the view that Defendant had a duty to educate Plaintiff on sexual harassment policies when he was in fourth grade in 1999-2000. The California Constitution, Article 1, section 28, subd. (a)(7), provides:

> Finally, the People find and declare that the right to public safety extends to public and private primary, elementary, junior high, and senior high school, and community college, California State University, University of

California, and private college and university campuses, where students and staff have the right to be safe and secure in their persons.

This too does not support the view that Defendant had a duty to educate Plaintiff on sexual harassment policies when he was in fourth grade in 1999-2000.

Defendants' demurrer to Plaintiffs' third cause of action for negligent failure to warn, train, or educate students is **SUSTAINED** with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendant's demurrer to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and the third cause of action for negligent failure to warn, train, or educate students, with leave to amend. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

7. 9:00 AM CASE NUMBER: C25-01728
CASE NAME: JOHN DOE VS. JOSEPH MARTIN
***HEARING ON MOTION IN RE: STRIKE ALLEGATIONS IN PLAINTIFF'S COMPLAINT**
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Before the Court is a motion to strike filed by defendant Mount Diablo Unified School District ("Defendant"), which seeks to strike paragraphs 43, 50, 57, 65 of the complaint ("Complaint") filed by plaintiff John JB Doe ("Plaintiff").

For the reasons set forth below, Defendant's motion to strike paragraphs 43, 50, 57, and 65, of the Complaint is **GRANTED**, with leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (Madison M. Simmons Decl., ¶¶ 2-3, Exhs. A & B; Code Civ. Proc., § 435.5, subd. (a)(3)(B).)

Background

Plaintiff filed the instant Complaint in this matter on June 16, 2025. The Complaint alleges four causes of action arising from the alleged sexual assault and harassment of Plaintiff, when he was a minor, by defendant Joseph Andrew Martin ("Martin"), who was Plaintiff's fourth grade teacher at Woodside Elementary School, within the area of Mount Diablo Unified School District. (Complaint, ¶¶ 1-34.) Plaintiff asserts claims against Defendant and Martin for: (1) negligent hiring, retention & supervision; (2) sexual harassment pursuant to Civil Code sections 51.9 and 52; (3) negligent failure to warn, train, or educate students; and (4) negligent supervision of a minor. (*Id*., at ¶¶ 35-66.)

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Paragraphs 43, 50, 57, 65 of the Complaint

Defendant argues that paragraphs 43, 50, 57, and 65, of the Complaint are improper and should be stricken. All the paragraphs make the same exact allegation:

> Pursuant to Government Code §§ 815.2 and 820, Defendants MDUSD and DOES 1 through 100, and each of them, are vicariously liable for injuries to Plaintiff caused by the acts, omissions, and breach of the duty of care of their agents and employees, including but not limited to, Joseph Martin and the staff and administrators at the public school attended by Plaintiff. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal. 4th 861.)

(Complaint, ¶¶ 43, 40, 57, 65.)

Specifically, Defendant argues that these allegations are improper because they assert that Defendant is "vicariously liable" for the actions of defendant Joseph Martin, who Plaintiff alleges sexually abused him when he was in the fourth grade around 1999-2000. (Motion to Strike, p. 3.) Defendant points out that this theory is improper because it was explicitly rejected in *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 452, which ruled that "the connection between the authority conferred on teachers to carry out their instructional duties and the abuse of that authority to indulge in personal, sexual misconduct is simply too attenuated to deem a sexual assault as falling within the range of risks allocable to a teacher's employer. It is not a cost this particular enterprise should bear, and the consequences of imposing liability are unacceptable."

Plaintiff argues that *C.A. v. William S. Hart Union High School District* (2012) 53 Cal. 4th 861, allows vicarious liability for the actions of the other school staff on the basis of their alleged non-sexual assault shortcomings, such as negligently hiring, retaining, and supervising defendant Martin. (Opposition, pp. 4-5.) Plaintiff states that the Complaint properly alleges vicarious liability under *Williams* because Plaintiff's first cause of action alleges the failure of administrators to properly hire, train, and supervise employees like Martin. (*Ibid*.)
Plaintiff asserts that, "The reference to Mr. Martin identifies the employee whom MDUSD's

administrators and other responsible personnel negligently hired, retained, and supervised. It does not seek to impose vicarious liability for Mr. Martin's sexual abuse itself." (*Id*., at p. 5.)

On Reply, Defendant contests Plaintiff's view that the reference to Martin in paragraphs 43, 50, 57, and 65, of the Complaint is one that identifies him as the employee Defendant's administrators negligently hired, retained, and supervised. (Reply, pp. 2-3.)

The Court agrees that the reference to Martin in paragraphs 43, 50, 57, and 65 of the Complaint, alleges that Defendant is vicariously liable for Martin's conduct. This is clear from reading the allegations. "Defendants . . . are vicariously liable for injuries to Plaintiff caused by the acts, omissions, and breach of the duty of care of their agents and employees, including but not limited to, Joseph Martin. . . ." (Complaint, ¶¶ 43, 40, 57, 65.) As there is no vicarious liability to Defendant for the sexual misconduct allegations of Martin, due to *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 452, these paragraphs contain an improper assertion.

Ruling

For the reasons discussed above, the Court **GRANTS** Defendant's motion to strike as to paragraphs 43, 50, 57, and 65 of the Complaint, with leave to amend. Plaintiff may file and serve an amended complaint within 10 days of notice of entry of this order.

8. 9:00 AM CASE NUMBER: C25-02103
CASE NAME: JESUS HUERTA VS. MT. DIABLO UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: ORDER TO APPOINT DECEASED PLTFS SUCCESSOR IN INTEREST**
FILED BY: HUERTA, JESUS LEAL
****TENTATIVE RULING:****

Plaintiff Belkis Leal Hernandez ("Successor-in-Interest") filed a Motion for Order to Appoint Deceased Plaintiff's Successor in Interest to Continue Action on February 9, 2026 (the "Motion to Substitute"), seeking an order to continue this action as the successor-in-interest to decedent plaintiff Jesus Leal Huerta ("Decedent"). The Motion to Substitute was set for hearing on June 22, 2026. The motion was advanced for hearing to April 20, 2026 by the Court's Order entered March 25, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest**." See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that “[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.” *Id*.

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Belkis Leal Hernandez filed February 9, 2026, ¶¶1-6.

<u>Disposition</u>

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. The moving party’s submitted form of order will be entered by the Court.

9. 9:00 AM CASE NUMBER: C25-03031
CASE NAME: JOHN KEYS VS. DOES 1-50, INCLUSIVE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BONNEY SERVICES WEST, LLC
<u>*TENTATIVE RULING:*</u>

Defendant's motion to compel arbitration and for a stay is **GRANTED**. Plaintiff John A. Keys is ordered to arbitrate his claims against Defendant Bonney Services West, LLC. Under the agreement's delegation clause, the arbitrator shall determine whether this action or any part of it is arbitrable.

The Court hereby **STAYS** the entire action pending the conclusion of the arbitration proceeding, except that the Court sets an arbitration status conference on **December 7, 2026 at 9:00 a.m.** in Department 34. The parties shall file joint or separate statements regarding the status of the arbitration proceedings at least ten court days before the conference.

<u>Background</u>

On October 16, 2025, Plaintiff filed this action against "Bonney Plumbing, LLC, doing business as Bonney Plumbing, Sewer, Electrical, Heating & Air Conditioning," asserting nineteen causes of action arising from his employment as a commission-only salesperson, including wrongful termination and wage and hour violations. Plaintiff does not dispute that he signed an arbitration agreement covering his claims. Instead, he contends that Defendant's alleged failure to pay earned wages, provide written commission terms, and act in good faith constitutes a material breach that voids any obligation to arbitrate.

On December 1, 2025, Bonney Services West, LLC appeared in this action by filing this motion to compel arbitration and for a stay, contending that it has been erroneously sued as Bonney Plumbing, LLC. In support of the motion, Defendant submits an arbitration agreement signed by Plaintiff that identifies Plaintiff as "Employee" and "Bonnie Plumbing, HVAC & Electrical" as "Employer." (Guerrero Decl., Exh. A.)

Standard

Under Code of Civil Procedure section 1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate. A party moving to compel arbitration under Section 1281.2 must prove by a preponderance of the evidence that: (1) The parties entered into a written agreement to arbitrate; and (2) one or more of the claims at issue are covered by that agreement. (Code Civ. Proc., § 1281.2; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) If the moving party meets this burden, the burden shifts to the resisting party to prove by a preponderance of evidence a defense to enforcement of the agreement. (*Id*., at p. 1230.)

California Law favors the enforcement of valid arbitration agreements. (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 320; *In re Tobacco I* (2004) 124 Cal.App.4th 1095, 1103.) Any doubts to arbitration will be resolved against the party asserting a defense to arbitration, whether the issue is construction of contract language, waiver, delay or any other defense to arbitrability. (*Ericksen*, *supra*, 35 Cal.3d at p. 320; *In re Tobacco I*, *supra*, 124 Cal.App.4th at p. 1103.)

The Existence of an Agreement to Arbitrate

Under Code of Civil Procedure section 1281.2, the first question before the Court is whether there was an agreement to arbitrate, or a meeting of the minds. (*Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169.)

"In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51.)

Defendant has attached an arbitration agreement signed by Plaintiff and dated January 30, 2023, in which the parties agree to arbitrate any dispute or legal claim arising from "(1) this agreement itself, and (2) the employment relationship (or the termination of the relationship)." (Guerrero Decl., Ex. A.) Defendant has met its initial burden. The burden now shifts to Plaintiff to identify a factual dispute as to the agreement's existence.

Plaintiff does not dispute that he signed the agreement. He raises three arguments against formation: (1) the absence of the employer's signature defeats mutual assent; (2) the agreement identifies the wrong employer entity; and (3) Defendant's alleged material breach of the employment relationship voids any obligation to arbitrate. None of these arguments is persuasive.

On the signature argument, Plaintiff relies on *Mitri v. Arnel Management Co.*, *supra*. *Mitri* is not on point. In that case, the employer moved to compel arbitration based on an arbitration clause in its employee handbook, which expressly stated that employees would be required to sign a separate arbitration agreement. No separate agreement was ever produced. The court held there was no agreement to arbitrate because the handbook itself contemplated a further signed agreement that never materialized. Here, by contrast, Defendant has produced a standalone arbitration agreement bearing Plaintiff's signature, authenticated by the declaration of Defendant's Director of Human Resources. The situation *Mitri* addressed is not present here.

As for the missing employer signature, a written arbitration agreement need not be signed by both parties to be binding. "The writing memorializing an arbitration agreement need not be signed by both parties in order to be upheld as a binding arbitration agreement." *(Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176.) A nonsignatory may demonstrate its intent to be bound through conduct implying ratification or acceptance of the agreement. (*Ibid*.) Defendant has done precisely that by filing this motion to compel arbitration. Moreover, just as with any written agreement signed by one party, an arbitration agreement can be specifically enforced against the signing party regardless of whether the party seeking enforcement has also signed, provided that the party seeking enforcement has performed or offered to do so. (*Id.* at p. 177.)

As to the entity name issue, several different names appear throughout the record. Plaintiff sued "Bonney Plumbing, LLC, dba Bonney Plumbing, Sewer, Electrical, Heating & Air Conditioning." Bonney Services West, LLC appeared and identified itself as having been erroneously sued under that name. The HR Director's declaration identifies "Defendant" as "Bonney Services West, LLC dba Big Air Heating and Air Conditioning; and Bonney Plumbing, Electrical, Heating, and Air Conditioning." The arbitration agreement itself identifies the employer as "Bonnie Plumbing, HVAC & Electrical," a name that does not correspond to any registered California business entity, according to Plaintiff’s Secretary of State search.

Plaintiff argues this discrepancy defeats formation. The record does not support that conclusion. Plaintiff's own tax records identify his employer as Bonney Services West, LLC, the same entity that appeared in this action and moves to compel arbitration. Plaintiff signed an agreement to arbitrate disputes with his employer, his own records confirm who that employer was, and that employer is the party now seeking to enforce the agreement. The presence of an imprecise or mistaken entity name in the agreement does not defeat formation under these circumstances, particularly where Plaintiff himself has acknowledged the agreement's existence. Further, Plaintiff's complaint alleges the agreement is "unenforceable because Defendants materially breached the [arbitration] contract before seeking to enforce its terms," an allegation that presupposes the agreement exists. Having taken that position, Plaintiff cannot now claim no agreement was formed in the first place simply because a variant entity name appears in it.

The Court finds that an agreement to arbitrate exists. As for Plaintiff's argument that Defendant's alleged material breach of the employment contract and/or alleged Labor Code violations voids the obligation to arbitrate, that is a challenge to the enforceability of the agreement rather than its formation, and falls within the delegation clause. Similarly, Plaintiff's unconscionability arguments go to the enforceability of the agreement and are also delegated to the arbitrator. Both are addressed below.

Delegation of Gateway Issues

Plaintiff argues the agreement is both procedurally and substantively unconscionable. On the procedural side, he argues the agreement was presented during onboarding without any opportunity to negotiate, that AAA rules were never provided, that the agreement identifies the wrong employer, that it was signed after the offer letter deadline, and that commission terms were absent from the underlying employment contract. He argues these factors reflect oppression and surprise sufficient to establish procedural unconscionability under *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111. On the substantive side, Plaintiff argues the agreement is one-sided because it preserves the employer's access to court for injunctive relief while restricting discovery, prohibits representative actions, delegates enforceability questions to the arbitrator, and limits statutory rights. He argues these features violate the minimum fairness standards required for employment arbitration agreements under *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83.

Parties to an arbitration agreement may delegate to the arbitrator questions regarding the enforceability of the agreement, and "can agree to arbitrate almost any dispute, even a dispute over whether the underlying dispute is subject to arbitration." (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 241.) "There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (*Id*. at p. 242.) Both prerequisites are satisfied here. The arbitration agreement includes a clear and unmistakable delegation clause. It provides:

> ARBITRATOR DECIDES ARBITRABILITY. The Parties agree that, to the fullest extent allowed under the Federal Arbitration Act or, if inapplicable, the California Arbitration Act, that the Arbitrator, and not the court, has the exclusive jurisdiction and power to decide whether this agreement is legally valid or enforceable as a contract (including whether it is 'unconscionable' or in violation of public policy). The Arbitrator also has the exclusive jurisdiction and power to decide whether a claim or legal dispute is covered by this Agreement, to the fullest extent allowed under the Federal Arbitration Act or, if inapplicable, the California Arbitration Act. However, the Arbitrator does not have the authority to expand the scope of covered Claims as described and limited in Paragraphs 1 and 2.

(Guerrero Decl., Ex. A, § 3.)

This provision unmistakably assigns to the arbitrator the power to determine whether the agreement is unconscionable or otherwise unenforceable. "If the party's challenge is directed to the agreement as a whole, even if it applies equally to the delegation clause, the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable. In contrast, if the party is making a specific challenge to the delegation clause, the court must determine whether the delegation clause itself may be enforced." (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1560, citing *Rent-A-Center*, 561 U.S. at 70.)

Plaintiff’s challenge is to the arbitration agreement as a whole. To the extent Plaintiff's challenges could be read to apply to the delegation clause specifically, they fail. "[A]rbitration contracts imposed as a condition of employment are typically adhesive." (*Davis v. Kozak* (2020) 53 Cal.App.5th 897, 906.)

"By itself, however, adhesion establishes only a 'low' degree of procedural unconscionability." (*Id*. at p. 907.) Any procedural unconscionability in this case is diminished by paragraph 12, which stated that Plaintiff was not required to sign the agreement to get or keep his job. Where procedural unconscionability is low, Plaintiff must make a correspondingly greater showing of substantive unconscionability. (*Serafin*, *supra*, 235 Cal.App.4th at p. 185.) Plaintiff makes no cogent argument that the delegation clause itself is substantively unconscionable, nor does the record support such a finding.

Disposition

Defendant's motion to compel arbitration is **GRANTED**. Plaintiff is ordered to arbitrate his claims against Defendant Bonney Services West, LLC. Under the agreement's delegation clause, the arbitrator shall determine whether this action or any part of it is arbitrable.

The Court **STAYS** the entire action pending the conclusion of the arbitration proceeding, except that the Court sets an arbitration status conference on **December 7, 2026 at 9:00 a.m.** in Department 34. The parties shall file joint or separate statements regarding the status of the arbitration proceedings at least ten court days before the conference.

10. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES - CONT. FROM 3/30/26 PER E-FILED STIP SIGNED BY JUDGE 3/5/26**
FILED BY: GARAVENTA, SILVIO
TENTATIVE RULING:

Before the Court is the continued hearing on a motion by plaintiff Silvio Garaventa, Jr., for payment of expenses, including attorneys' fees, pursuant to Corporations Code section 2000 after the parties' submission of supplemental papers requested by the Court. For the reasons set forth, the motion is **granted in part and denied in part**, as set forth below.

Procedural Background

On August 13, 2025, after the deadline for the buy-out passed, plaintiff Silvio Garaventa filed his motion for payment of expenses under Corporations Code section 2000(c). In his original motion, Garaventa sought judgment for attorneys' fees and costs of $184,778.94, including $148,781.25 in attorneys' fees, $14,247.69 in costs, and $21,750 for one-half the amount Pine Hollow paid for the appraisals valuing the corporation. (MPA ISO Mot. p. 13, ll. 10-20.)

Garaventa's motion for payment of expenses under Corporations Code section 2000 was originally set for hearing on January 22, 2026. Azari opposed the motion on a number of grounds. The Court issued a detailed tentative ruling for that hearing, which became the order of the Court as reflected in the Court's January 22, 2026 Minute Order. The Court requested supplemental papers from Garaventa addressing certain specific issues, and the Court provided Azari an opportunity to file a supplemental response.

In the Court's prior ruling, the Court addressed and tentatively resolved a number of the legal and factual issues in dispute. The Court will re-summarize the applicable law for determination of the motion. The Court will highlight the conclusions reached in the prior ruling and the remaining unresolved issues subject to the supplemental papers before setting forth the Court's final conclusions and determination of the motion.

Garaventa's supplemental papers modify the expense request by reducing the amount sought by $1,767 for certain services Garaventa concedes are not expenses within the scope of Corporations Code section 2000(c). The Court asked Garaventa to also exclude attorneys' fees related to his motion to appoint a receiver over Pine Hollow which he calculates as $4,770.75. Totaling those two amounts and deducting them from the $148,781.25 in the original motion, the modified request for attorneys' fees would be for $142,243.50.

The Court recognizes Garaventa disputes the Court's prior ruling that the fees associated with the motion to appoint the receiver are not within the scope of Corporations Code section 2000(c). The Court will address that dispute below, as well as Garaventa's dispute of the Court's prior determination that he is not entitled to recover one-half the amount that Pine Hollow paid for the appraisals related to the buyout.

Azari continues to oppose the relief sought as modified in Plaintiff's supplemental papers.

Factual Background

The January 22, 2026 Minute Order includes a lengthy recitation of the case background, which the Court adopts without repeating here.

Law Applicable to the Determination of the Motion

Corporations Code section 2000 in regard to an award of expenses provides:

> (b) If the purchasing parties (1) elect to purchase the shares owned by the moving parties, and (2) are unable to agree with the moving parties upon the fair value of those shares, and (3) give bond with sufficient security to pay the estimated reasonable expenses (including attorneys' fees) of the moving parties if those expenses are recoverable under subdivision (c), the court . . . shall stay the winding up and dissolution proceeding and <u>shall proceed to ascertain and fix the fair value of the shares owned by the moving parties</u>.
>
> (c) The court shall appoint three disinterested appraisers . . . . <u>The order shall prescribe the time and manner of producing evidence, if evidence is required</u>. . . . The court shall enter a decree, which shall provide in the alternative for winding up and dissolution of the corporation unless payment is made for the shares within the time specified by the decree. If the purchasing parties do not make payment for the shares within the time specified, <u>judgment shall be entered against them and the surety or sureties on the bond for the amount of the expenses (including attorneys' fees) of the moving parties</u>. . . . .

(Corp. Code § 2000(b) and (c) [emphasis added].)

There is limited published case law addressing Corporations Code section 2000 and the expenses recoverable after a party makes a buyout election and then fails or refuses to complete the buyout. Both parties cite *Go v. Pacific Health Services, Inc.* (2009) 179 Cal.App.4th 522. The issues presented on appeal in that case were (a) whether the trial court erred in valuing the corporation and undervalued the plaintiff's shares, and (b) whether the trial court's decree erroneously directing the immediate wind up of the corporation if the purchasing defendants failed to complete the buyout within the time deadline set in the decree. (*Id*. at 525-526.) The Court of Appeal affirmed the trial court on both issues, but the published portion of the decision addressed only the propriety of the decree directing the immediate wind up of the entity. In concluding that the decree for the immediate wind up was appropriate, the Court explained that Corporations Code section 2000 if invoked begins a special proceeding that supplants the cause of action for involuntary dissolution under Corporations Code section 1800. (*Id.* at 530.)

In affirming the trial court's decree, the Court described the process under Corporations Code section 2000(c), quoting from *Trahan v. Trahan* (2002) 99 Cal.App.4th 62, in which the Court explained that if the purchasing parties chose not to purchase the shares and permit the dissolution of the corporation to proceed, then the purchasing parties "only liability would be to pay the expenses (including attorneys' fees) <u>incurred by the moving parties in the appraisal process</u>. [Citation omitted.]" (*Trahan, supra,* 99 Cal.App.4th at 75, quoted at *Go, supra,* 179 Cal.App.4th at 531.) The Court in *Go* later reiterated this interpretation of the expense liability imposed by Corporations Code section 2000(c) in rejecting the defendants' position that they should have been allowed to contest the involuntary dissolution of the corporation under Corporations Code section 1800 after they invoked the buy-out election procedure and then decided not to buy the shares. (*Id.* at 531-532 ["If [dissolution] were not the inevitable outcome, then all majority shareholders facing an action for involuntary dissolution would invoke section 2000 if only for the purpose of delay, <u>with nothing to lose other than the expense of the appraisal and attorneys' fees</u>, knowing they could eventually litigate the action for involuntary dissolution on its merits." (Emphasis added.)].)

With regard to the standards for the Court awarding attorneys' fees and costs, the Court in *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315 explained that courts assess attorneys' fees generally under a "lodestar" figure based on a compilation of the time spent by counsel multiplied by the reasonable hourly compensation for each attorney who rendered services. (*Id.* at 1321 ["The court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. [Citations omitted.]"].) "[A]scertaining the fee amount is left to the trial court's sound discretion. [Citations omitted.] Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts. [Citations omitted.]" (*Id.*)

Christian Research Institute does not preclude block billing or require denial of attorneys' fees solely because the fee records contain block billing. It is a factor the Court considers in the Court finding the services are compensable. (*Christian Research Institute, supra,* 165 Cal.App.4th at 1325.) (*See also Bell v. Vista Unified School District* (2000) 82 Cal.App.4th 672, 689.)

Analysis

A. **Summary of the State of the Record on the Motion**

The motion is supported by the Bowles Declaration which attaches billing summaries as Exhibit A and a summary of expenses as Exhibit B. As to one component of the lodestar calculation, the billing rates charged by the attorneys performing services, the Bowles Declaration provides the hourly rates of three attorneys, Bowles ($425), Ms. Tomp ($285), and Cheryl Noll beginning in October 2022 ($385). Bowles explains why the rates are reasonable given (a) the nature of the services rendered and the issues involved, (b) the experience of the attorneys rendering the services, and (c) the fact that the rates were those in effect when the attorneys began work on the case and have not been increased since then. (Bowles Decl. ¶¶ 25-28.) Garaventa has also filed a supplemental Bowles Declaration and a supplemental reply addressing issues on which the Court requested supplemental papers.

Azari filed a memorandum opposing the motion and filed a supplemental opposition as authorized by the Court. Azari does not dispute that the rates charged by Plaintiff's counsel are reasonable. Azari also does not contend that the time actually expended by the professionals representing Garaventa was excessive for any of the tasks performed. Azari contests the fees requested as he contends they exceed the scope of services compensable under Corporations Code section 2000(c), are not related to the appraisal of Pine Hollow, or are not sufficiently described and supported as related to the Pine Hollow appraisal for the Corporations Code section 2000 buyout.

B. **Prior Determinations from the January 22, 2026 Minute Order Adopted and Reaffirmed in This Ruling**

The Court reiterates and adopts certain prior rulings made in the January 22, 2026 Minute Order. First, the Court will not revisit its prior ruling on Azari's right to withdraw his Corporations Code section 2000(a) buyout election, a right the Court rejected in an earlier ruling. The Court previously found that the special proceeding of Corporations Code section 2000 supplanted Garaventa's involuntary judicial dissolution cause of action under Corporations Code section 1800. (*Go, supra*, 179 Cal.App.4th at 531-532; *Ontiveros v. Constable* (2018) 27 Cal.App.5th 259, 267.) Azari's attempt to withdraw from his election under Corporations Code section 2000(a) provides no basis for the Court to deny the statutorily mandated payment of Plaintiff's expenses, including attorneys' fees, under Corporations Code section 2000(c).

For the reasons explained at length in the January 22, 2026 Minute Order, the Court reiterates its ruling rejecting Azari's position that the only tasks that are properly charged or compensable "would be gathering and transmitting documents to the appraiser and reviewing appraisals – not motion practice, letters to the Court, or other court filings." (Opp. p. 10, ll. 12-15.) For the reasons previously stated, the expenses to which Garaventa is entitled under Corporations Code section 2000(c) are not limited to those related to obtaining the three appraisals, and attorneys' fees and expenses incurred after May 2, 2025, the date of the Section 2000 Decree, are recoverable to the extent related to Azari's determination as to whether to complete the buyout and the consequences of his decision that resulted in the dissolution of Pine Hollow. The fees subject to the motion end with time entries on June 25, 2025.

Based on the Bowles Supplemental Declaration, Garaventa concedes that $1,767 in fees pertain to services that do not relate to the special proceeding for the appraisal of Pine Hollow. Garaventa has reduced his request for expenses by that amount as set forth above.

The Court adopts and reiterates its position on Azari's complaint about "block billing" entries. For the reasons explained at length, the Court does not find that so-called block billing, based on the entries in Exhibit A to the original Bowles Declaration, prevents the Court from making an assessment of the services rendered, the attorneys' fees incurred, and above all, the reasonableness of the expenses for purposes of making the award under Corporations Code section 2000(c).

The Court also reiterates and adopts its prior ruling made in the January 22, 2026 Minute Order that Garaventa is not entitled to an award of 50% of the cost of the appraisals which Pine Hollow itself obtained and paid for, a point Garaventa does not contest. Garaventa submits no evidence indicating that he personally paid for any portion of the three appraisals obtained as part of the buyout, whether directly or through his counsel. Garaventa, as the "moving parties" under Corporations Code section 2000, did not expend those fees. Award of the appraisal costs incurred by the entity, not by Garaventa, is not consistent with the language of Corporations Code section 2000.

C. Matters Subject to Supplemental Briefing

Garaventa was asked to provide supplemental papers on certain issues. Garaventa has provided adequate supplemental evidence and briefing as the Court requested. Specifically, Exhibit A to the Bowles Supplemental Declaration provides a year by year summary of time spent by the time keepers who worked on this matter with their applicable billing rate and the dollar value of fees incurred for their services. The supplemental evidence adequately explains an apparent discrepancy in the billing rates for Ms. Tomp. The Court finds the summary helpful and sufficient to demonstrate that the hours spent and billing rates charged for the services rendered were reasonable and appropriate, to the extent the fees and services were incurred for services within the scope of expenses recoverable under Corporations Code section 2000(c). (*Christian Research Institute, supra,* 165 Cal.App.4th at 1321.)

As to the costs requested as part of the expenses, Exhibit B to the Supplemental Bowles Declaration provides an explanation of each of the components of costs comprising the total of approximately $14,000 sought in the motion. The Court finds Exhibit B adequately responds to the Court's concerns in the prior ruling regarding the expense categories.

Azari's supplemental opposition contests language used in the Court's January 22, 2026 Minute order regarding the standard for awarding expenses under Corporations Code section 2000. (Suppl. Opp. p. 3, fn. 2.) Corporations Code section 2000 governing the award of expenses provides that "the court . . . shall <u>proceed to ascertain and fix the fair value of the shares owned by the moving parties</u>," and if the party who made the Corporations Code section 2000 election fails to purchase the shares based on the fair value ascertained by the Court, then "judgment shall be entered against them and the surety or sureties on the bond <u>for the amount of the expenses (including attorneys' fees) of the moving parties</u>." (Corp. Code §§ 2000(b) and (c) [emphasis added].)

Azari contests the Court's use of the words "reasonably related" to the appraisal process. Azari contends that the Court cannot award expenses "reasonably related" to the appraisal process but rather must award fees and costs "actually 'incurred by the moving parties in the appraisal process,' " citing *Go, supra,* 179 Cal.App.4th at 531. (Suppl. Opp. p. 3, fn. 2.) The full statement from the January 22, 2026 Minute using that language was:

> As the background summary above sets forth, the Court held a number of hearings regarding the status and timing of the Pine Hollow appraisal process, whether the action should be stayed based on the bearing the AGL arbitration might have on the Pine Hollow valuation, whether the Corporations Code section 2000 special proceeding to value Pine Hollow should be bifurcated from Plaintiff's other claims and causes of action related to Pine Hollow, whether Azari could withdraw his Corporations Code section 2000 buyout election, and what appraisal should be adopted as the valuation of Pine Hollow. The Court considers services involving or related to those activities to be reasonably related to the special proceeding for the appraisal of Pine Hollow and compensable under Corporations Code section 2000(c).

(1/22/2026 Min. Order.)

<u>For the avoidance of any doubt in this ruling</u>, the Court finds that the attorneys' fees and expenses incurred for the services summarized in the January 22, 2026 Minute Order, as set forth above, were incurred by [Garaventa as the moving party] in the appraisal process. (Corp. Code §§ 2000(b) and (c); *Go, supra,* 179 Cal.App.4th at 531.)

1. <u>Fees Related to Discovery</u>

Garaventa was asked to file a supplemental declaration explaining why discovery included in Exhibit A to the original Bowles Declaration was properly considered related to the appraisal and buyout under Corporations Code section 2000(c). The supplemental reply and Supplemental Bowles Declaration provide support and an explanation for the relationship between the discovery and the appraisal and buyout election, though the supplemental papers concede that the written discovery covered by these services also addressed AGL, which is outside the scope of recoverable expenses under Corporations Code section 2000.

In his supplemental opposition, Azari also contends that the appraisal process "does not necessitate or even justify party discovery." (0pp. p. 3, l. 23 – p. 4, l. 1.) The record does not support Azari's position. The order appointing the three appraisers filed August 18, 2020 expressly contemplated that the parties may have relevant information to provide to the appraisers as part of the appraisal process. (8/18/2020 Order ¶¶ 3 ["The parties shall provide any and all information they deem relevant to the appraisers, with the information being provided in writing and made available to the other party as well."], 5, 6 [directing appraisers to determine the fair value based on liquidation "taking into account the possibility, if any, of the sale of the entire business as a going concern in a liquidation"].)

The record reflects that Pine Hollow was an operating business entity which owned and operated a service station, mini-mart, and car wash on land owned by the related entity AGL Enterprises. (5/2/2025 OAH, p. 3.) As an operating business entity, its financial statements, including balance sheets, income and expense or profit and loss statements, and the nature, basis, and propriety of the line item components included in the financials, were clearly pertinent to the appraisers' valuations. (5/2/2025 OAH pp. 4-5 [addressing appraisers' adjustments to management fee amounts, cash reserve on balance sheet, certain liabilities to third parties, and the "deferred settlement" category].) In addition, in addressing Garaventa's claim that at least a portion of the discovery was specifically part of the appraisal process and therefore recoverable, the Court focuses in particular on paragraphs 6 and 7 of the Supplemental Bowles Declaration. (*See also* Suppl. Bowles Decl. ¶¶ 8-12 [further explaining the discovery expenses].) Those paragraphs explain in some detail the nature of the discovery Garaventa propounded and why it was necessary to the appraisal process for the Pine Hollow entity.

Based on the Supplemental Bowles Declaration (Suppl. Bowles Decl. ¶¶ 6-12), the Court finds it appropriate to allocate 50% of the fees related to discovery requested in the motion to AGL, such that they are outside the scope of an award of expenses under Corporations Code section 2000, and the motion is **denied** as to Garaventa's request for attorneys' fees related to discovery in the amount equal to 50% of the attorneys' fees included in the motion related to discovery. However, the Court finds Garaventa has sufficiently justified the need for discovery to provide information to the appraisers for the valuation of Pine Hollow. The Court finds that allocating 50% of the discovery-related attorneys' fees to discovery of information for the valuation of Pine Hollow is appropriate as reflecting expenses of Garaventa incurred for the process of "ascertain[ing] and fix[ing] the fair value of the shares owned by" Garaventa in Pine Hollow. (Corp. Code §§ 2000(b) and (c).)

2. <u>Fees Related to Plaintiff's Motion to Appoint Receiver Over Pine Hollow</u>

Garaventa complied with the Court's request to separately state the amount of fees included in the motion related to Garaventa's motion for appointment of a receiver made in the early months of the case. Plaintiff has explained those fees total $4,770.75. (Suppl. Bowles Decl. ¶¶ 4, 5.) The Court understands Garaventa's argument for why he believes those fees are within the scope of expenses related to the appraisal and buyout of Pine Hollow, but the Court concludes they are not properly encompassed within the award of expenses under Corporations Code section 2000(c). The request for those fees is **denied**.

3. <u>Mischaracterization of Exhibit A as Statement of "All Hours and Fees Incurred in the Entire Matter"</u>

Azari argues (again) that Exhibit A to the Bowles Declaration covers all hours and fees incurred for the Bowles' firm's services for the entire case. (Suppl. Opp. p. 4, ll. 22-24.) This argument was raised in Azari's initial opposition to the motion, and the Court rejected his position. (1/22/2026 Min. Order PDF p. 6 ["Azari argues Garaventa is seeking to recover "all expenses incurred in the action" with limited exception for the "excluded categories" described in the motion and the Bowles Declaration. (Opp. p. 11; Bowles Decl. ¶ 24.) Bowles declares that <u>Garaventa has incurred over $470,000 in attorneys' fees in the case and over $85,000 in costs (Exh. B shows over $83,000 in expenses through June 2025). (Bowles Decl. ¶ 24.) The expenses requested in the motion are considerably less than the total incurred, less than one-third of the total.</u>" (Emphasis added.)].) The Court rejects that argument in the supplemental opposition and will not revisit the Court's prior determination in that regard made in the January 22, 2026 Minute Order.

4. <u>Azari's Challenges to the Costs Request</u>

Azari raises various challenges to the costs requested by Garaventa totaling $14,247.69 covering the five and a half year period roughly from November 1, 2019 through the end of June 2025. The Court has reviewed the Supplemental Exhibit B attached to the Supplemental Bowles Declaration, and the Court has considered the Bowles Supplemental Declaration regarding the expenses included. (Bowles Suppl. Decl. ¶¶ 23-25.) Having considered these materials and the objections by Azari in his supplemental opposition, including that certain costs appear to be specifically related to the motion for appointment of a receiver which the Court has found is not part of the appraisal process**, the Court grants costs requested less $984.55, for net costs awarded of $13,263.14**. The Court excludes from the costs awarded the following: 3/30/2023 bridge toll/parking $9.00, 7/17/2023 color printing $23.00, 7/17/2023 filing fee $16.55, 2/4/2020 jury fees $150.00, 11/5/2019 Natalie Moore mileage $15.00, 11/7/2019 Bowles mileage $12.00, 11/5/2019 bridge toll/parking $1.00, 11/7/2019 bridge toll/parking $2.00, 11/7/2019 court reporter fees $745.00, and 11/6/2019 fax to Judge Austin $1.00 totaling **$984.55.**

<u>Conclusion and Final Award</u>

Garaventa's motion for expenses under Corporations Code section 2000(c) is **granted in part**. Garaventa's motion for payment of expenses is granted as follows: (a) attorneys' fees of **$142,243.50**, **<u>minus</u> 50% of the fees related to discovery** included in Exhibit A to the original Bowles Declaration, in an amount to be determined by a second supplemental Bowles declaration to accompany the proposed order, and (b) costs in the amount of **$13,263.14**. The motion is **denied to the extent** it seeks payment of $21,750 representing 50% of the cost of the appraisals obtained and paid for by Pine Hollow and as to the other 50% of fees incurred for discovery. The $142,243.50 is the net amount from the amount requested in the motion of $148,781.25 less the disallowed amount of $4,770.75 for fees related to the receiver motion. The $13,263.14 in costs awarded represent the $14,267.69 requested less the $984.55 disallowed as not incurred as part of the appraisal process.

Bowles shall lodge a proposed judgment awarding expenses under Corporations Code section 2000(c). With the proposed judgment, Bowles shall file a second supplemental declaration stating (1) the total fees included in Exhibit A for discovery-related services, (2) the amount that represents 50% of the total discovery-related fees, and (3) the calculation of the net award amount after deduction of the amounts disallowed by the Court for discovery from the $142,243.50 above.

11. 9:00 AM CASE NUMBER: MSC21-02074
CASE NAME: BANERJEE VS. SEECUBIC INC
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT FILED 6/3/25**
FILED BY: SEECUBIC, INC.
<u>*TENTATIVE RULING:*</u>

Before the Court is Defendants Seecubic, Inc. and Shad Stastney's Motion to Set Aside Default Judgment Filed on June 3, 2025.

Procedural History

Plaintiff filed his initial complaint on October 8, 2021. Years of litigation followed including numerous discovery fights. On January 8, 2025, the Court granted Plaintiff's motion for terminating sanctions and contempt against Defendants. As part of that order, the Court struck "defendants' Answer and render[ed] a default." Notice of the Order was provided that same date.

Thereafter, on February 4, 2025, Plaintiff obtained Entry of Default against Defendants. Notice was provided to Defendants, via their counsel of record, on that same date. On June 3, 2025, a Judgment was entered against Defendants and in favor of Plaintiff. On June 26, 2025, Defendants filed substitution of counsel forms indicating that counsel of record Rodney Mayr was being replaced by current counsel Biggs Law Office.

Counsel filed a Notice of Appeal on August 5, 2025. A Notice of Abandonment of Appeal was filed on August 20, 2025. Over three months later, on December 2, 2025, Defendants filed the instant motion to set aside the Judgment.

Basis of Motion

Defendants' Notice of Motion makes clear that they "move for an order to set aside the default judgment filed on June 3, 2025." It does not indicate the statutory basis for their motion. Instead, it states that that motion is made "on the grounds that Defendant Seecubic Inc. and Defendant Shad Stastney were subjected to terminating sanctions arising out of discovery issues that were before the court over a lengthy period of time, without any knowledge of those proceedings, and concealed from them by their former counsel in this matter Rodney Mayr."

The introduction to their points and authorities indicates that Defendants seek an order setting aside the default judgment "under the authority of CCP 473." (Motion at 1:21-22.) That Code section contains a few separate methods for seeking relief, however. For example, subdivision (b) "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

Reading deeper into Defendant's papers it appears clear that Defendants are moving solely based on the discretionary provisions of subdivision (b) of section 473. As such, that is the analysis on which the Court will focus on.

Standard

Code of Civil Procedure 473(b) provides, in relevant part:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after

> the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under Code of Civil Procedure 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.)

Analysis

Time to Challenge Default

As noted above, Defendants solely seek to set aside the default ***judgment*** via this motion. Even so, the timing and requirements for seeking relief from the initial default are relevant to the inquiry.

When a party seeks relief from a default, "[a]pplication for this relief … shall be made within a reasonable time, in no case exceeding six months, after the … order … was taken." (CCP §473(b).) Default was entered against the Defendants on February 4, 2025. The [Default] Judgment was entered on June 3, 2025.

Defendants are moving to set aside only the Judgment, and not the initial default. As noted above, an application for relief from default must be made within six months of entry of the default – which did not occur here. The "six-month time limit for granting statutory relief [under 473 (b)] is jurisdictional and the court may not consider a motion for relief made after that period has elapsed." (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 citing *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318.) As such, the Court cannot set aside the default. This also prevents the Court from setting aside the [default] Judgment in this instance.

The court in *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267 provides a succinct overview of the analysis in such a situation:

> [Defendant's] motion was filed less than six months after entry of the default judgment, but more than six months after entry of its default. The trial court therefore could not set aside the default under Code of Civil Procedure section 473. And because it could not set aside the default, it also could not set aside the default judgment under Code of Civil Procedure section 473, because that would be 'an idle act.' (*Howard Greer Custom Originals v. Capritti* (1950) 35 Cal.2d 886, 888[].) 'If the judgment were vacated, it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. …'" (*Id.* at 273.)

The California Supreme Court in *Howard*, quoted by *Pulte Homes,* includes an even more in-depth explanation of this legal tenet:

> The setting aside and vacating the judgment alone, which was all the relief sought in said motion, would have been an idle act, because the default . . . would have stood undisturbed. The default cut off defendants from making any further opposition or objection to the relief which plaintiff's complaint shows he is entitled to demand. A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or

move for a new trial, or demand notice of subsequent proceedings. . . . [citing cases] . . . If the judgment were vacated it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. …" (*Howard*, supra, 35 Cal.2d at 888-89 citations omitted.)

Defendants do not, and cannot, seek to have the default set aside. While the current request to set aside the Judgment may be timely, the Court is without power to set it aside as doing so would be an 'idle act.' (*Pulte Homes Corp.*, supra, 2 Cal.App.5th at 273.) Even if the Court set aside the Judgment, it would be required to thereafter enter a new judgment – without input from Defendants as they would remain in default.

Punitive Damages

At the end of their motion, Defendants argue that the punitive damages component of the [default]Judgment should be vacated pursuant to section 473. As outlined above, Defendants' Notice of Motion does not indicate that they are seeking to set aside the punitive damages portion of the Judgment. Instead, it only indicates they are seeking an order "to set aside the default judgment filed on June 3, 2025."

In its opening papers, Defendants argue that the punitive damage component of the judgment should be vacated pursuant to Code of Civil Procedure section 473, citing *Dumas v. Stocker* (1989) 213 Cal.App.3d 1262. That matter, however, pertains to an appeal after a jury award of punitive damages. It does not hold, or even discuss, the propriety of a motion to set aside the judgment under section 473.

Even if Defendant's Notice could be read to focus specifically on the award of punitive damages such relief is not available under section 473(b). Under that section, the court may "relieve a party or the party's legal representative from a judgment … taken against ***through the party's*** mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc. § 473(b) emphasis added.) Defendants were not involved in the default judgment procedure because the 'prove-up' procedure is limited to the plaintiff's presentation of evidence. (*Devlin v. Kearny Mesa Amc/Jeep/Renault* (1984) 155 Cal.App.3d 381, 386; Code Civ. Proc. § 585(b) cited therein.) After a default, the Defendants "could not participate in a judgment hearing on punitive damages" (*Devlin*, 155 Cal.App.3d at 385), despite Defendants' contention that it should have been allowed to "appear and object to Plaintiffs lack of sufficient evidence on Defendants net worth…." (Mtn. at III B.) As such, the punitive award could not have been the result of Defendant's "mistake, inadvertence, surprise, or excusable neglect."

If, as Defendants allege here, the court erred and awarded a judgment "which is utterly unwarranted" under the complaint, "the defendant's remedy is a motion for a new trial (new judgment hearing) or an appeal from the default judgment." (*Ostling v. Loring* (1994) 27 Cal.App.4th 1731, 1745; see also Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2025) ¶ 5:255, p. 5:68.) Not a motion under Code of Civil Procedure section 473(b).

In its reply, Defendants make several new arguments, including asserting for the first time that the judgment is void and thus may be set aside under Code of Civil Procedure section 473(d). "It is elementary that points raised for the first time in a reply brief are not considered by the court." (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.) If Defendants believe the judgment is void and should be set aside under subdivision (d), it should file a motion that properly raises such arguments in the first instance.

Conclusion

Based on the above, Defendant's Motion is **DENIED** without prejudice to filing a new motion to set aside based on Code of Civil Procedure 473(d).

12. 9:00 AM CASE NUMBER: N25-0881
CASE NAME: DAVID WEE VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: TO: 1ST AMENDED PETITION FOR WRIT OF MANDATE
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Respondent City of Richmond (the "City") filed a Demurrer on December 5, 2025 the "Demurrer") to the First Amended Complaint filed by Plaintiff on November 12, 2025 (the "FAC"). The Demurrer was set for hearing on April 20, 2026. Notice was duly given.

Background

The City's Demurrer contends, among other things, that all of the causes of action alleged in the FAC fail to state facts sufficient to constitute causes of action because they are barred by the applicable statute of limitations. The Court sustained the City's prior demurrer to the initial complaint on similar grounds and granted leave to amend. See Order entered October 29, 2025 (the "Prior Ruling").

Analysis

The Demurrer is unopposed. The City's accompanying request for judicial notice is likewise unopposed and is GRANTED, subject to the limitations on judicial notice under applicable law as addressed more fully in the Court's Prior Ruling.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is DENIED.
3. Moving party to submit proposed form of order and judgment of dismissal.

13. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: LIU, RUBY SHE

TENTATIVE RULING:*

Parties to Appear.

14. 9:00 AM CASE NUMBER: N25-2345
CASE NAME: CLAIM OF:MAGGIE ROE
***HEARING ON MOTION IN RE: TO FILE UNDER SEAL**
FILED BY: ROE, DIANE
TENTATIVE RULING:*

This matter is DROPPED from calendar. In the Court's prior tentative ruling in connection with the related Petition for Approval of Compromise heard on February 9, 2026, the Court advanced for hearing, *sua sponte*, and GRANTED this accompanying Motion to File under Seal. The shall enter the order.

15. 9:00 AM CASE NUMBER: N25-2358
CASE NAME: CLAIM OF:JACQUELINE SANCHEZ
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:*

Approval of Compromise of Claim on October 30, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimant Jaqueline Sanchez. See Code Civ. Proc. § 372 and Rule 7.950 *et seq*. of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on April 20, 2026.

Analysis

The Minor's Compromise is unopposed.[1] The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

[1] Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-00074
CASE NAME: NEXT LEVEL STRATEGIES, INC. VS. NEXTGEN LABORATORIES, A CALIFORNIA CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL INTERROGATORY RESPONSES, WAIVE OBJECTIONS, AWARD SANCTIONS**
FILED BY: NEXT LEVEL STRATEGIES, INC.
<u>*TENTATIVE RULING:*</u>

Plaintiff and judgment creditor Next Level Strategies, Inc. ("Judgment Creditor") filed a Motion to Compel Interrogatory Responses, Waive Objections, Award Sanctions against defendant and judgment debtor Nextgen Laboratories ("Judgment Debtor") on November 10, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on April 20, 2026.

<u>Background</u>

A money judgment was entered by the Court on May 14, 2024 (the "Judgment") against the Judgment Debtor.

After entry of Judgment, the Judgment Creditor served the Judgment Debtor with special interrogatories (the "Special Interrogatories"). See Declaration of Bryan D. Sampson filed November 10, 2025 (the "Supporting Declaration"), ¶11; see also Exhibit List re Motion to Compel filed November 10, 2025, **Exhibit 3** ("WRITTEN INTERROGATORIES, SET 1, TO JUDGMENT DEBTOR"). The Special Interrogatories were served on July 3, 2025 by mail on Judgment Debtor at 4229 Birch Street, Suite 130, Newport Beach, CA 92660. *Id*. at **Exhibit 3** (Declaration of Service).

<u>Analysis</u>

Under Code of Civil Procedure section 708.020, a judgment creditor may propound written interrogatories to a judgment debtor, in the same manner as provided for discovery generally in a pending civil action, commencing with Code of Civil Procedure section 2030.010. See Code Civ. Proc. § 708.020(a). Interrogatories served on a judgment debtor may be enforced in the same manner as interrogatories in a civil action. *Id*. at § 708.020(c).

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories). The propounding party may also seek the imposition of monetary sanctions. Id.

With a five calendar day extension for service of the Special Interrogatories by mail, the responses were due to be served on or before August 7, 2025. No responses were received before the deadline. Supporting Declaration, ¶12. Despite meet and confer efforts, no responses have been received since. See *id*. at ¶13 *et seq*.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the Special Interrogatories at issue:

1. Judgment Debtor was duly served with the subject Special Interrogatories.
2. No timely response was made to the Special Interrogatories by Judgment Debtor.
3. Judgment Creditor engaged in meet and confer efforts and Judgment Debtor did not respond to

those communications and did not provide responses to the Special Interrogatories.

4. No opposition or other responsive pleadings by Judgment Debtor have been filed with the Court.

Sanctions

Judgment Debtor's failure to respond to the Special Interrogatories even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

Judgment Debtor's failure to respond to meet and confer efforts regarding the Special Interrogatories constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Judgment Debtor constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the Special Interrogatories, the Court finds that Judgment Debtor did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel is GRANTED.
2. **Judgment Debtor shall serve verified responses to the Special Interrogatories within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Special Interrogatories have been waived to the fullest extent permitted by applicable law. See Code Civ. Proc. §§ 2030.290.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Judgment Debtor shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Judgment Debtor shall pay monetary sanctions to the Judgment Creditor in the amount of **$960.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by the Judgment Creditor as a result of the foregoing conduct by Judgment Debtor. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Judgment Debtor within thirty (30) calendar days of notice of entry of this order.**
5. The Court shall enter the order after hearing.

17. 9:01 AM CASE NUMBER: C23-02250
CASE NAME: MICHAEL GALLINETTI VS. CHRISTOPHER JOACHIM

***HEARING ON MOTION FOR DISCOVERY COMPEL MENTAL EXAMINATION OF PLAINTIFF MICHAEL GALLINETTI**
FILED BY: JOACHIM, CHRISTOPHER LEE
<u>*TENTATIVE RULING:*</u>

Defendant Christopher Lee Joachim ("Defendant") filed a Motion to Compel Mental Examination of Plaintiff Michael Gallinetti on October 3, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on April 6, 2026. Subsequently, the Motion to Compel was continued by the Court for hearing to April 20, 2026.

<u>Background</u>

Plaintiff Michael Gallinetti ("Plaintiff") filed the Complaint on September 7, 2023. Plaintiff's Complaint alleges, among other things, that Defendant negligently caused a collision between Defendant's vehicle and Plaintiff's vehicle, injuring Plaintiff.

The case is presently set for jury trial on May 17, 2027.

<u>Analysis</u>

Because Plaintiff testified at deposition that he has suffered a brain injury as a result of the subject accident, including memory problems. See Memorandum of Points and Authorities (MPA) filed October 3, 2025, p. 1 *et seq*.; see also Robert F. Bennett, Jr. filed October 3, 2025 ("Bennett Decl."), ¶3. Plaintiff further testified he began consulting with a neurologist and "had a brain scan." See Bennett Decl., ¶3 and **Exhibit C** thereto.

Plaintiff seeks leave of Court for a mental examination of plaintiff under Code of Civil Procedure section 2032.310. See Code Civ. Proc. § 2032.310(a). A motion for such examination must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." *Id*. at § 2032.310(b). The motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id*.

Efforts to meet and confer were made between the parties regarding an examination of plaintiff specific to "the brain injury at issue, including completion of neurological testing with a qualified provider." See Bennett Decl., ¶6. However, various disputes arose as to the particulars of the conduct of such examination. *Id*. Points of dispute include issues regarding the "presence of someone other than plaintiff and the examiner during the testing." *Id*.; see also Declaration of William D. Hooker, Ph.D. filed October 3, 2025.

No Opposition has been filed. No showing has been made by Plaintiff justifying any particular preconditions to be placed on the examination beyond the statutory provisions relating to the conduct of such examination. See Code Civ. Proc. §§ 2032.220 and 2032.320.

<u>Disposition</u>

The Court finds and rules as follows:

1. The Motion to Compel is GRANTED. The Court finds good cause for the subject examination.
2. Defendant to prepare the order after hearing pursuant to Rule 3.1312 of the California Rules of Court (CRC). The order shall specify the matters required by Code of Civil Procedure section 2032.320(d) as addressed in the Declaration of William D. Hooker, Ph.D.

18. 9:01 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
***HEARING ON MOTION FOR DISCOVERY PRELIMINARY INJUNCTION TO COMPEL DEFENDANT HOMEOWNERS' ASSOCIATION TO PERFORM COMMON-AREA REPAIRS**
FILED BY: GUPTA, PRAVEEN
****TENTATIVE RULING:****

Parties to Appear.

19. 9:01 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER**
FILED BY: SEENO, DAVID
****TENTATIVE RULING:****

This matter is CONTINUED by the Court *sua sponte* to April 27, 2026.

Law & Motion
Add On

20. 9:00 AM CASE NUMBER: C25-03089
CASE NAME: ROSE MARIE CUTINO VS. SERVICE FINANCE COMPANY, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR DEF G TECH SMART, INC.**
FILED BY: G TECH SMART, INC.
****TENTATIVE RULING:****

Timothy R. Hanigan and Lang, Hanigan & Carvalho, LLP ("Counsel") filed a motion to be relieved as counsel on March 24, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026. The motion was subsequently advanced for hearing to April 20, 2026 by the Court's Order entered April 6, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant G Tech Smart, Inc. ("G Tech").

The supporting declaration filed by Counsel indicates that "[i]rreconcilable differences have arisen between counsel and client which have made it impossible" for Counsel to continue to represent G Tech. See Declarations filed March 24, 2026, ¶2. G Tech has been given notice of the Motion to be Relieved as Counsel. *Id*. at ¶3.

No opposition or other response has been filed by G Tech or any other party.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised order after hearing. The form MC-053 Order should be updated to reflect the latest calendar settings at Paragraph 7 and updated departmental and other hearing information.